

Annex 4 to Judgment No. 16.

ORDER

MADE ON AUGUST 15th, 1929.

1929.
August 15th.
File E. b. XX.*Before :*

MM. ANZILOTTI, <i>President</i> ,	
HUBER, <i>Vice-President</i> ,	
LODER,	}
NYHOLM,	
DE BUSTAMANTE,	
ALTAMIRA,	
ODA,	
PESSÔA,	
HUGHES,	}
NEGULESCO,	
WANG,	

*Judges,**Deputy-Judges,*Count ROSTWOROWSKI, *Judge ad hoc.*

CASE CONCERNING THE JURISDICTION
OF THE INTERNATIONAL COMMISSION OF THE ODER
(SUBMISSIONS).

THE COURT,

composed as above,
after deliberation,
makes the following Order :

The Permanent Court of International Justice,
Having regard to Article 48 of the Statute,

Having regard to the Special Agreement for arbitration signed on October 30th, 1928, between the Governments of Czechoslovakia, Denmark, France, Germany, His Britannic Majesty in Great Britain, and Sweden, on the one hand, and the Government of Poland, on the other ;

Having regard to the Order made by the President of the Court on March 26th, 1929, dispensing, amongst other things, with the presentation by the Parties of written Replies in this case ;

Having regard to the Memorials filed by each Party on April 15th, 1929;

Having regard to the Counter-Memorials filed by each Party on June 10th, 1929;

Whereas, according to Article 1 of the Special Agreement, the Court is asked to give judgment on the following question:

“According to the provisions of the Treaty of Versailles, does the jurisdiction of the International Commission of the Oder extend to those portions of the Warta and Netze, tributaries of the Oder, which are situated in Polish territory and, if so, what is the law which should govern the determination of the upstream limits to which this jurisdiction extends?”

Whereas, in their Counter-Memorial, the Six Governments acting in the same interest submit “that the answers of the Court to the questions submitted for decision should be those submitted in their Memorial”; as the answers thus suggested relate to both the questions formulated by the Special Agreement;

Whereas, on the other hand, in the Counter-Memorial filed by it, the Polish Government formulates submissions which solely relate to the first of these questions; as, in so far as concerns the other, the Polish Government confines itself “to making every reservation as to the submissions made in the Memorial of the Six Governments” and “reserves the right to state its case in regard to the three solutions proposed by the Six Governments in the course of the oral argument before the Court”;

Whereas, however, in a case submitted to the Court by Special Agreement and in which therefore there is neither Applicant nor Respondent, the Parties must have an equal opportunity reciprocally to discuss their respective contentions; as this is the reason for the provision laying down that in cases submitted in this way, the written documents are to be filed simultaneously by both Parties;

Whereas, accordingly, the Six Governments must be enabled to discuss, in their first oral argument and not only in their reply, any alternative submissions made by the Polish Government;

Invites the Agent for the Polish Government to file with the Registry by midday on Saturday, August 17th at latest, any alternative submissions as to the second of the two questions submitted to the Court under Article 1 of the Special Agreement of October 30th, 1928.

Done in French and English, the French text being authoritative, at the Peace Palace, The Hague, this fifteenth day of August, one thousand nine hundred and twenty-nine, in eight copies, one of which is to be deposited in the archives of the Court, and the others to be forwarded to the Agents of the Governments of Czechoslovakia, Denmark, France, Germany, His Britannic Majesty in Great Britain, and Sweden, as also to the Agent of the Government of Poland, respectively.

(Signed) D. ANZILOTTI,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.
